

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
GIOVANNI GARRY MUNGIN,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JOSE
CORDERO, Shield No. 14899,

Defendants.

Index No.:

Date Filed:

Plaintiff designates
Bronx County as the
place of trial.

SUMMONS

The basis of venue is Plaintiff's
place of residence.

-----X
TO THE ABOVE-NAMED DEFENDANTS:

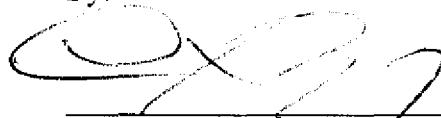
YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney within twenty (20) days after the service of this Summons, exclusive of the day of service or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: White Plains, New York
March 5, 2019

Yours, etc.,

LAW OFFICES OF
FRANCIS X. YOUNG, PLLC

By:



FRANCIS X. YOUNG, ESQ.
Attorneys for Plaintiff

Office and Post Office Address
11 Martine Avenue, 12th Floor
White Plains, New York 10606

(914) 285-1500

Defendants' Addresses:

CITY OF NEW YORK
Corporation Counsel, Department of Law
100 Church Street
New York, New York 10007

POLICE OFFICER JOSE CORDERO, Shield No. 14899
c/o City of New York Police Department
PSA 7
737 Melrose Avenue
Bronx, New York 10451

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COUNTY OF BRONX

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GIOVANNI GARRY MUNGIN,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JOSE
CORDERO, Shield No. 14899,

Defendants.
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VERIFIED COMPLAINT

Index No.:

Date filed:

Plaintiff, GIOVANNI GARRY MUNGIN, complaining of the Defendants, by and through his attorneys, THE LAW OFFICES OF FRANCIS X. YOUNG, PLLC, as and for his Complaint, hereby alleges as follows:

PRELIMINARY STATEMENT

(1) This is an action for money damages brought pursuant to 42 U.S.C. § 1983, 1985 and 1988 and the Fourth and Fourteenth Amendments to the United States Constitution, and under the common law of the State of New York for assault, battery, conspiracy, false arrest, malicious prosecution and violation of Plaintiff's civil rights against CITY OF NEW YORK, POLICE OFFICER JOSE CORDERO, individually and in his official capacity as City of New York Police Officer.

(2) It is alleged that the Defendants committed assault, battery, illegal seizure, false imprisonment, false arrest of the Plaintiff, violating his rights under the Fourth and Fourteenth Amendments of the United States Constitution and under state and federal common law. It is further alleged that these violations and torts were committed as a result of the policies and customs of the City of New York and the City of New York Police Department.

CONDITIONS PRECEDENT TO SUIT

(3) Within ninety (90) days after the claim herein arose, a Notice of Claim was served upon the Defendant, CITY OF NEW YORK, and at least thirty (30) days have elapsed since the service of the aforesaid Notice of Claim, and adjustment or payment thereof has been neglected or refused.

(4) This action is being commenced within one year and ninety days after the happening of the events upon which the claim is based.

THE PARTIES

(5) Defendant POLICE OFFICER JOSE CORDERO was at all times relevant to this complaint duly appointed and acting officers of the City of New York Police Department, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York, and/or the City of New York Police Department.

(6) Defendant CITY OF NEW YORK is a municipal corporation organized and existing under the laws of the State of New York, and transacting business therein and the public employer of Defendant, POLICE OFFICER JOSE CORDERO.

(7) Plaintiff GIOVANNI GARRY MUNGIN was at all material times a resident of the County of Bronx, State of New York.

JURISDICTION AND VENUE

(8) This Court has personal jurisdiction over the Defendant CITY OF NEW YORK because it is a municipal corporation organized and existing under the laws of the State of New York, and transacting business therein.

(9) This Court has personal jurisdiction over Defendant, POLICE OFFICER JOSE CORDERO, because he is employed by the CITY OF NEW YORK.

(10) This Court has subject matter jurisdiction over this action by virtue of its status as a Court of general jurisdiction.

THE FACTS

(11) On or about April 27, 2018, in the evening hours in the vicinity of 324 East 143rd Street, Borough of Bronx, City and State of New York, Plaintiff, GIOVANNI GARRY MUNGIN was arrested and charged with theft of services under New York Penal Law §165.15(3).

(12) Plaintiff, GIOVANNI GARRY MUNGIN, was incarcerated and remained in jail overnight.

(13) Plaintiff, GIOVANNI GARRY MUNGIN, was processed, searched and forced to attend various Court appearances until all charges against the Plaintiff, GIOVANNI GARRY MUNGIN, were dismissed on July 9, 2018 amounting to a favorable determination.

(14) It is believed that the accusatory instrument was signed by POLICE OFFICER JOSE CORDERO, who is believed to be identified as Shield No. 14899.

(15) It is claimed Defendant, POLICE OFFICER JOSE CORDERO and others working with him at the City of New York Police Department did not have probable cause to arrest the Plaintiff, GIOVANNI GARRY MUNGIN, and failed to properly investigate the facts preceding Plaintiff's arrest.

(16) Plaintiff, GIOVANNI GARRY MUNGIN, had neither physically resisted nor assaulted the Defendant Police Officer in any way, and the force used against him was unnecessary, unreasonable, and excessive.

(17) As a direct and proximate result of the acts of Defendants, the Plaintiff GIOVANNI GARRY MUNGIN suffered physical, mental, economic and emotional damages.

(18) As a direct and proximate result of the actions of the Defendants, Plaintiff's GIOVANNI GARRY MUNGIN' constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution and state and federal common law were violated. Specifically, the following clearly established and well-settled state and federal common law and constitutional rights of the plaintiff were violated:

- (a) Freedom from the unreasonable seizure of his person;
- (b) Freedom from the use of excessive, unreasonable, and unjustified force against his person;
- (d) Right of due process;
- (e) Equal protection under the law;

COUNT I
42 U.S.C. § 1983
4th and 14th Amendments

(19) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 18 of this Complaint with the same force and effect as if fully set forth herein.

(20) Plaintiff GIOVANNI GARRY MUNGIN claims damages for the injuries set forth above under 42 U.S.C. 1983 against Defendants, for violation of his constitutional rights under color of law including the Fourth and Fourteenth Amendments to the United States Constitution and state and federal common law.

COUNT II
42 U.S.C. § 1985

(21) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 20 of this Complaint with the same force and effect as if fully set forth herein.

(22) Plaintiff GIOVANNI GARRY MUNGIN claims damages for the injuries set forth above under 42 U.S.C. § 1985 against Defendants for conspiring to violate his constitutional rights under color of law.

COUNT III
42 U.S.C. § 1986

(23) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 22 of this Complaint with the same force and effect as if fully set forth herein.

(24) Plaintiff GIOVANNI GARRY MUNGIN claims damages for the injuries set forth above under 42 U.S.C. § 1986 against Defendants for Defendants' failure to intervene and prevent the aforesaid violation of Plaintiff's constitutional rights and conspiracy to commit same.

Count IV
Malicious Prosecution

(25) The Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs 1 through 24 of this Complaint with the same force and effect as if fully set forth herein.

(26) Defendants' concerted actions, under color of law, caused Plaintiff to be maliciously prosecuted in violation of his civil rights under the Fourth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. §1983 and the laws of the State of New York.

(27) As a result of the above, Plaintiff, GIOVANNI GARRY MUNGIN, suffered damages to his reputation, incurred legal fees, suffered mental and emotional trauma, lost his enjoyment of life and was deprived of his civil rights and personal liberty as protected by the United States Constitution and applicable Federal Statutes.

(28) As a direct and proximate result of the foregoing actions, said Defendants deprived Plaintiff of rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution in violation of 42 U.S.C. § 1983.

COUNT V
Assault and Battery

(29) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 28 of this Complaint with the same force and effect as if fully set forth herein.

(30) Defendant POLICE OFFICER JOSE CORDERO caused Plaintiff GIOVANNI GARRY MUNGIN to be assaulted and battered.

(31) As a result of this assault and battery, Plaintiff was forced to endure physical and emotional pain and suffering.

(32) Plaintiff claims damages for the physical and emotional pain and suffering incurred as the result of said assault and battery.

(33) As a result of the above, Plaintiff, GIOVANNI GARRY MUNGIN, suffered personal injuries, suffered mental and emotional trauma, and was deprived of his civil rights and personal liberty as protected by the United States and New York State Constitution and applicable Federal and New York State statutes.

COUNT VI
False Arrest and Imprisonment

(34) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 33 of this Complaint with the same force and effect as if fully set forth herein.

(35) Defendants' concerted actions, under color of law, caused plaintiff to be falsely arrested and imprisoned in violation of his civil rights under the Fourth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. § 1983 and the laws of the State of New York.

(36) As a result of the above, Plaintiff, GIOVANNI GARRY MUNGIN, suffered personal injuries, incurred legal fees, suffered mental and emotional trauma, and was deprived of his civil rights and personal liberty as protected by the United States and New York State Constitution and applicable Federal and New York State statutes.

(37) As a direct and proximate result of the foregoing actions, said Defendants deprived Plaintiff of rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution in violation of 42 U.S.C. §1983.

ATTORNEYS FEES

(38) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 37 of this Complaint with the same force and effect as if fully set forth herein.

(39) Plaintiff is entitled to an award of attorney's fees pursuant to 42 U.S.C. §1988.

WHEREFORE, Plaintiff, GIOVANNI GARRY MUNGIN, requests that this Court grant judgment to him containing the following relief:

- (1) Award compensatory damages to Plaintiff against the Defendants, jointly and severally;
- (2) Award costs of the action to the Plaintiff;
- (3) An award to Plaintiff of his actual damages;
- (4) An award to Plaintiff of reasonable attorney fees;
- (5) An award to Plaintiff of punitive damages; and
- (6) Such other and further relief as this Court may deem just, proper and equitable.

Dated: White Plains, New York
March 5, 2019

Respectfully yours,

LAW OFFICES OF
FRANCIS X. YOUNG, PLLC
BY:



FRANCIS X. YOUNG
Attorneys for Plaintiff

GIOVANNI GARRY MUNGIN

Office and Post Office Address
11 Martine Avenue, 12th Floor
White Plains, New York 10606
(914) 285-1500

STATE OF NEW YORK)
)
COUNTY OF WESTCHESTER)

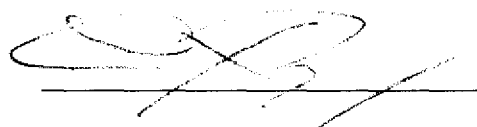
FRANCIS X. YOUNG, ESQ., an attorney admitted to practice law in the State of New York affirms the following is true:

I am the attorney for the plaintiff, GIOVANNI GARRY MUNGIN, in this action, and that I maintain an office at 11 Martine Avenue, 12th Floor, White Plains, New York. I have read and know the contents of the foregoing Complaint, and that the same is true to my knowledge except as to the matters herein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

My belief, as to these matters therein not stated upon information is based upon the following: material, information and documents contained in said files and conversations with the plaintiff.

The reason I make this verification is because the plaintiff resides outside the County in which I maintain an office.

I affirm that the foregoing statements are true under the penalties of perjury.


FRANCIS X. YOUNG

Affirmed this
5th day of March, 2019.